RESIDENTIAL HOUSE LEASE AGREEMENT

This Residential House Lease Agreement ("Lease") is made and effective

4-25-23

Date

by and between

Ethan & Kenia Kunz

landlords (print)

and

Jared Geers & Kayla Geers

tenants (print)

1. **PREMISES.**

A. The Landlords agree to rent to the Tenants the municipality located at **308 Jamie Ct Longview, TX 75605,** (the "Premises") for primary use as a residential premise. The Premise is more particularly described as follows: the entire property contained within the property deed and all items located on the property.

B. Subject to the provisions of this Lease, apart from the Tenants and their dependents, no other persons will live in the Premises without the prior consent of the Landlords through some medium of notice, nor will the property be subleased without consent of the Landlord in the same manner.

C. No guest of the Tenants may occupy the Premises without the prior consent of the Landlord if that guest is staying for more than two weeks.

D. No pets or animals can be kept in or about the Premises without prior written consent of the Landlord. Consent shall be given in the form of an addendum to this contract that describes the terms of the agreement and is considered an addition to all items present within this contract.

E. There will be no indoor smoking on the premises. If the property becomes such that it requires professional cleaning to remove the odor of smoke inside the home, the Tenants will agree to absorb the cost to clean the property to a reasonable level of neutral odor. Any costs associated with smoking are unrelated to the rental deposit and shall be paid separately from the rental deposit.

2. **TERM.**

The first term ofthis Lease shall start on _____. The first term will cycle on a monthly basis for one year from the start date, at which point a second term can be agreed upon. The cycle is stated to give preference to the Tenants for a move out date at any point within the year term with the only stipulation being a notice given to the Landlords 30 days in advance ofmovement in order to secure a new tenant. This does not include life-altering emergencies, where it is impossible to manage the 30 day window. Such emergencies include for example: death ofa tenant, sudden job loss without notice requiring a quick move, or grave illness. If the tenant moves within the last month of payment beyond the 1st of the month, they agree to pay a percentage of the rental deposit against the monthly rent. For example, if the tenant moves out May 15, then the tenant's rental deposit will subtract half the worth of the months rent.

3. **RENT.**

Rent shall be paid in full at --**$1700**-- within the first week ofeach month. This amount covers only the lease ofthe Premises and does not include any other fees incurred by living at the property such as utility services. Such fees and services will be selected and maintained by the Tenants. Rent will be paid using any method that is possible on the Avail application, which is the system used for managing the property. Also, no method shall be chosen that once posted requires more than a week after the last day ofthe first week ofeach month to post. To summarize, all payments must be in the account of the Landlords' within two weeks ofthe first ofthe month barring extenuating circumstances agreed upon *in writing* by Tenants and Landlords. Failure to pay rent within one week ofthe posted date shall result in a fee of--**$175**--as allowed under Texas law for each two weeks not paid from the first day late. The first late payment will be a warning, and Tenant will be informed of lateness with a 5 day grace period to post payment.

Future changes to the rent amount will--as ofthis lease--be based on increases in the Landlord's property tax and house insurance. This amount will be noted to the Tenant based on each amount to maintain a fair increase in cost and to note transparency. Should the Landlord's loan be paid off, the yearly increase will be based on a 5 year average percentage of yearly inflation, not to exceed 5%. Such changes in cost will occur each year between April and May.

4. **SECURITY DEPOSIT.**

Upon execution ofthis Lease, Tenants shall deposit with the Landlords $1500 as security for the performance by Tenants ofthe terms ofthis Lease which will be returned to Tenants, without interest, following the full and faithful performance by Tenants ofthis Lease. In the event ofdamage to the House caused by Tenants or Tenants' family, agents or visitors, Landlords may use funds from the deposit to repair. **If** a repair requirement is caused by Tenants due to negligence that exceeds $1500 and the item is not covered by either home or rental insurance, then the Tenant absorbs the liability ofrendering the damage to a previous state within 3 months. Failure to do so will result in a 2 week notice of eviction followed by a filing for relevant legal claims.

5. ASSIGNMENT AND SUBLETTING.

A. Tenants shall not assign this Lease or sublet or grant any concession or license to use the House or any part of the Premises without Landlords' prior written consent.

B. Any assignment, subletting, concession, or license without the prior written consent of Landlords, or an assignment or subletting by operation of law, shall be void and, at Landlords' option, terminate this Lease. The Tenants will also absorb all liability from damages caused by individuals who were assigned, sublet, conceded, or licensed without approval.

C. If the Tenants decide to allow another family member/s on the premises for the term of this lease, up to two family members can stay in the house for a period of one month without required consent of the Landlords.

6. ALTERATIONS AND IMPROVEMENTS.

A. Tenants shall make no alterations to the House or construct any building or make other improvements without the prior written consent of Landlord. This does not include items that are easily changed such as pins to hang pictures, towel racks, shower head adjustments, or other items that can be reasonably reversed or altered by one person within two days. Changes that require more than two days shall be billed to the Tenant.

B. All permanent alterations, changes, and improvements built, constructed, or placed on or around the House by Tenants, with the exception of fixtures properly removable without damage to the House and movable personal property, shall, unless otherwise provided by written agreement between Landlords and Tenants, be the property of the Landlords and remain at the expiration or earlier termination of this Lease.

C. Items agreed upon as a partnership, such as paid work done by the Tenants, or repairs that alter the basic state of the house will be agreed upon in writing. The receipts and tracking of payments or c;osts will be tracked in the Avail application for transparency and tax purposes.

7. DAMAGE TO PREMISES.

If the House, or any part of the House, shall be partially damaged by fire or other casualty not due to Tenants' negligence or willful act, or that of Tenants' family, agent, or visitor, there shall be an abatement of rent corresponding with the time during which, and the extent to which, the House is untenantable. If Landlords shall decide not to rebuild or repair, the term of this Lease shall end, and the rent shall be prorated up to the time of the damage.

8. **UTILITIES.**

As mentioned in the section governing rent, all utilities will be covered by the Tenants. Tenants must maintain at the bare minimum a means of trash removal and electricity. This is to ensure that the property is not damaged by infestation or mold due to improper waste removal or a temperature that is left above 82 degrees Fahrenheit in combination with a humidity above 60%. The house will be maintained both above 32 degrees Fahrenheit and below 82 degrees Fahrenheit. If mold accumulates due to improper management of temperature or humidity, the Tenants will be liable for mold remediation.

9. **MAINTENANCE AND REPAIR.**

A. Tenants will keep and maintain the Premises and appliances in good and sanitary condition during the term of this Lease. In particular, Tenants shall, at Tenants' sole expense, make all required repairs to the plumbing, range, oven heating apparatus, electric and gas fixtures, other mechanical devices and systems, floors, lawn, decorative foliage, ceilings and walls whenever damage to such items shall have resulted from Tenant's misuse, waste, neglect, or that of the Tenants' family, agent, or visitor.

B. Tenants agree that no signs shall be placed, or painting/remodeling done on or about the House by Tenants without the prior written consent of Landlord.

C. Tenants agrees to promptly notify Landlords in the event of any damage, defect or destruction of the House, or the failure of any of Landlords' appliances or mechanical systems, and except for repairs or replacements that are the obligation of Tenant pursuant to Subsection A above, Landlord shall use best efforts to repair or replace such damaged or defective area, appliance or mechanical system within the bounds of Texas law.

10. **RENTAL INSURANCE.**

Tenants will keep some level of rental insurance. The exact type and amount will not be specified but having a level of personal insurance combined with Landlords' insurance will ensure a much lower risk of issues arising due to potential damages sustained.

11. RIGHT OF INSPECTION.

Landlords and Landlords' agents shall have the right at all reasonable times during the term of this Lease and any renewal ofthis Lease to enter the house for the purpose ofinspecting the Premises and/or making any repairs to the Premises or other item as required under this Lease. Such inspection ofthe house shall require notification to the Tenants within 24 hours unless there is reasonable suspicion under Texas law that requires prudent examination ofthe Premise for items ofan illegal or maliciously suspicious nature. General inspection around the property that does not cross the fence line or involve home entry will not require notification. Ifless than 24 hours is given for a home entry, and no items ofnote are obtained, the Landlords will remove **$300.00** from the bill ofthe monthly cycle under the month ofsuch inspection in good faith. Regardless ofthe reason for inspection, a one hour confirmation must be submitted to the Tenants before home entry, and only the Landlords listed on this lease can perform an inspection less than 24 hours in nature. Ifno confirmation is obtained within 1 hour ofa less than 24 hours inspection, then police officials will be contacted, and the issue will become that of a criminal/civil nature in terms ofapproach and entry to the Premises.

12. DISPLAY OF SIGNS.

During the 30 day window ofa written relinquishment ofTenancy, or within 30 days ofthe one year mark ofthis lease, "For Sale" or "For Rent" or "Vacancy" or similar signs may be placed by Landlords on or about the House and entry to show the House to prospective purchasers or tenants may be accomplished by Landlords with proper notification to current Tenants.

13. HOLDOVER BY TENANT.

Should Tenants remain in possession ofthe House with the consent of Landlords after the expiration ofthe Term of this Lease, a new tenancy shall be created which shall be subject to all the terms and conditions ofthis Lease, plus any additional agreed upon at such time. If Tenant holds over without Landlord's consent, Landlord is entitled to the maximum penalty allowed by Texas law per day/week/month until Tenant leaves the House and Premises.

14. SURRENDER OF PREMISES.

At the expiration ofthe Lease, Tenant shall quit and surrender the House in as good a condition as it was at the commencement ofthis Lease, reasonable wear and tear and damages by the elements excepted. Examples ofreasonable wear include fading ofthe carpet, minor scrapes to paint no more than one inch that can be repaired with paint, broken blinds from age and sun damage, death ofplants on Premises, broken down insulation in the attic etc.

15. FORFEITURE OF SECURITY DEPOSIT - DEFAULT.

It is understood and agreed that Tenants shall not attempt to apply or deduct any portion of any security deposit from the last or any month's rent or use or apply any such security deposit at any time in lieu of payment of rent. If Tenant fails to comply, such security deposit shall be forfeited, and Landlords may recover the rent due as if any such deposit had not been applied or deducted from the rent due. For the purposes of this paragraph, it shall be presumed that a Tenants leaving the Premises while owing rent is making an attempted deduction of deposits. Furthermore, any deposit shall be held as a guarantee that Tenants shall perform the obligations of the Lease and shall be forfeited by the Tenants should Tenants breach any of the terms and conditions of this Lease. In the event of default, by Tenants, of any obligation in this Lease which is not cured by Tenant within fifteen (15) days notice from Landlord, then in addition to forfeiture of the Security Deposit, Landlords may pursue any other remedy available at Texas and federal law, equity or otherwise. As an example, failure to pay a late rent penalty will result in a recorded removal from the security deposit along with communication of that amount to the Tenants.

16. ABANDONMENT.

If at any time during the term of this Lease, Tenants abandons the House or any of Tenants' personal property in or about the House, Landlords shall have the following rights: Landlords may, at Landlords' option, enter the House by any means without liability to Tenant for damages and may relet the House, for the whole or any part of the then unexpired term, and may receive and collect all rent payable by virtue of such reletting; Also, at Landlord's option, Landlords may hold Tenants liable for any difference between the rent that would have been payable under this Lease during the balance of the unexpired term, if this Lease had continued in force, and the net rent for such period realized by Landlords by means of such reletting. Landlords may also dispose of any of Tenants' abandoned personal property as Landlords deems appropriate, without liability to Tenants. Landlords are entitled to presume that Tenants have abandoned the House if Tenants remove substantially all of Tenants' furnishings and personal possessions from the House, if the House is suddenly unoccupied for a period of two (2) consecutive weeks-outside of vacation or business related travel, or if it would otherwise be reasonable for Landlords to presume under the circumstances that the Tenants have abandoned the House.

17. SECURITY.

Tenant acknowledges that Landlord does not provide a security alarm system or any security for the House or for Tenants and that any such alarm system or security service, if provided, is not represented or warranted to be complete in all respects or to protect Tenants from all harm. Tenants hereby release Landlords from any loss, suit, claim, charge, damage or injury resulting from lack of security or failure of security. This is mitigated by the requirement of rental insurance. All security items such as door locks and window locks required by Texas law shall be maintained by the Landlord.

23. **GOVERNING LAW.**

It is agreed that this Lease shall be governed by, construed, and enforced in accordance with the laws ofthe State of Texas.

24. **ENTIRE AGREEMENT.**

This Lease shall constitute the entire agreement between the parties. Any prior understanding or representation ofany kind preceding the date ofthis Lease is hereby superseded. This Lease may be modified only by a writing signed by both Landlords and Tenants. Such modification would then be noted as an addendum to this lease and follow any subsequent leases in later potential terms. The lease and any modifications will be held as a single document in the Avail system for reference by all parties herein. All costs, repairs, and requests are to be handled and tracked in the Avail system for record and can be requested and viewed by all parties.

25. **NOTICES.**

Any notice required or otherwise given pursuant to this Lease shall be in the form of email, recorded phone call, or writing; hand delivered, mailed certified return receipt requested, postage prepaid, or delivered by overnight delivery service, if to Tenant, at the House and if to Landlord, at the address for payment of rent.

IN WITNESS WHEREOF, the parties have caused this Lease to be executed the day and year first above written. Landlords can be contacted at ethan.douglas.kunz@gmail.com, kenia.j.kunz@gmail.com, and at 417-920-6774

landlord (signature)	landlord (signature) 2nd
DATE	DATE
tenant (signature)	tenant (signature) 2nd
4-25-23	4-25-23
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